

RPBA	Rules of Procedure of the Boards of Appeal
RPDBA	Additional Rules of Procedure of the Disciplinary Board of Appeal
RPEBA	Rules of Procedure of the Enlarged Board of Appeal
RFees	Rules relating to Fees
SISA	Supplementary International Searching Authority
TRIPS	Agreement on Trade-related Aspects of Intellectual Property Rights
UPOV	International Union for the Protection of New Varieties of Plants
USPTO	United States Patent and Trademark Office
WIPO	World Intellectual Property Organization

2. Citations

(a) The articles and rules of the EPC referred to are in the version valid at the time the decision was given.

(b) The text of the EPC as revised in 2000 and which entered into force in 2007 is cited without the attribute "2000". The text valid before that is cited as "EPC 1973". A cross-reference list of provisions of EPC 1973 and EPC 2000 is available in Annex 5.

(c) The Rules of Procedure of the Boards of Appeal in the revised version of 2020 (see OJ 2019, A63) are cited as "RPBA 2020". The Rules of Procedure of the Boards of Appeal in the version of 2007 (see OJ 2007, 536) are cited as "RPBA 2007". Prior versions are cited by the year of their entry into force.

(d) The Official Journal of the EPO is cited as OJ, followed by the year of publication and page number for publication prior to 2014 (eg OJ 2000, 322) and as OJ, followed by the year of publication and article for publication as of 2014 (eg OJ 2015, A102).

(e) If a decision of a board of appeal has been **published** in the OJ the reference is given.

If a decision has **not** been **published** in the OJ, normally only the case number is cited.

In the table of cases, the bibliographic data of all cited decisions (ie reference number, the board which took the decision, the date of the decision, and – where applicable – the citation in the OJ) are listed.

3. Case numbers

The case numbers comprise a **letter** followed by a sequence of **numbers**:

G	Decisions and opinions of the Enlarged Board of Appeal on referrals
R	Decisions of the Enlarged Board of Appeal on petitions for review
J	Decisions of the Legal Board of Appeal
T	Decisions of a Technical Board of Appeal
W	Decisions of a Technical Board of Appeal on protests under <u>R. 40.2</u> or <u>68.3 PCT</u>
D	Decisions of the Disciplinary Board of Appeal

The number before the oblique is a **serial number**, allocated by chronological order of receipt. The two numbers after the oblique indicate the **year of receipt** of the appeal.

4. Search the Case Law of the Boards of Appeal

HTML version

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- access the [Advanced Website Search Tool](#)
- expand the search options by selecting the "advanced search" function; and
- restrict to "Case law of the boards of appeal".

It is also possible to search in more than one legal text simultaneously, or for example to also include results from the decisions database by additionally selecting "Decisions of the EPO boards of appeal". The use of Boolean (AND, OR, NOT) and proximity (NEAR) operators is supported and the available filters can also be used to optimise search results.

The 10th edition of the Case Law of the Boards of Appeal also offers users the possibility to search on a topic basis using the ["Detailed table of contents"](#) This replaces the "General Index" from previous editions.

PDF version

By downloading the Case Law of the Boards of Appeal as a PDF, it is also possible to access the fully-expandable table of contents in the left-side margin and to use this to quickly navigate to the desired chapters. You will be able to access the table of contents while simultaneously viewing the text of the chapters. This expandable table of contents can be accessed by clicking on the "bookmarks", "contents" or similarly named tab in the PDF (browser/application dependent).

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The four essential pre-conditions governing the patentability of inventions under the EPC are laid down in Art. 52(1) EPC, which reads: "European patents shall be granted for any inventions, in all fields of technology, provided that they are new, involve an inventive step and are susceptible of industrial application."

1. Patent protection for technical inventions

Art. 52(1) EPC expresses the fundamental principle of a general entitlement to patent protection for any invention in all technical fields (see G 5/83, OJ 1985, 64, point 21 et seq. of the Reasons; G 1/98, OJ 2000, 111, point 3.9 of the Reasons; G 1/03, OJ 2004, 413, point 2.2.2 of the Reasons; G 1/04, OJ 2006, 334, point 6 of the Reasons; T 154/04; OJ 2008, 46, 62, point 6 of the Reasons). Any limitation to the general entitlement to patent protection is thus not a matter of administrative or judicial discretion, but must have a clear legal basis in the EPC (see G 2/12, of 25.03.2015, OJ 2016 A28; T 154/04).

The technical character as a legal requirement of invention was expressly confirmed by the Conference of the Contracting States to Revise the EPC of 20 to 29 November 2000.

During the course of the revision of the EPC, Art. 52(1) EPC was brought into line with Art. 27(1), first sentence, TRIPS with a view to enshrining the word "technology" in the basic provision of substantive European patent law, clearly defining the scope of the EPC, and **explicitly** stating in the law that patent protection is available to **technical inventions of all kinds**. The new wording of Art. 52(1) EPC plainly expresses that patent protection is reserved for creations in the technical field (see OJ SE 4/2007, 48). The revised Art. 52 EPC applies to European patents granted and European patent applications pending on 13 December 2007 and to applications filed on or after that date.

Art. 52(2) EPC contains a non-exhaustive list of **"non-inventions"**, that is, subject-matter or activities not to be regarded as inventions within the meaning of paragraph 1. The exclusion from patentability of the subject-matter or activities referred to applies only to the extent that a European patent application or European patent relates to such subject-matter or activities **as such** (Art. 52(3) EPC; see also OJ SE 4/2007). Art. 52(2) EPC covers subject-matter whose common feature is a substantial lack of technical character.

The application of Art. 52(1) EPC presents a problem of construction as there was no legal or commonly accepted definition of the term "invention" at the time of conclusion of the Convention in 1973. Moreover, the EPO has not developed any such explicit definition since. Art. 52(2) EPC is merely a negative, non-exhaustive list of what should not be regarded as an invention within the meaning of Art. 52(1) EPC. It was the clear intention of the contracting states that this list of "excluded" subject matter should not be given too broad a scope of application, as follows from the legislative history of Art. 52(2) EPC. Art. 52(3) EPC is a bar to a broad interpretation of Art. 52(2) EPC (T 154/04, point 6 of the Reasons; see also G 2/12, OJ 2016 A28).